

CITATION: (Canada) Attorney General v. Ranger, 2011 ONSC 3196
COURT FILE NO.: 09-43969
DATE: 2011/05/25

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:)
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THE ATTORNEY GENERAL OF CANADA) Talitha A. Nabbali, for the Attorney General
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)
Plaintiff (Responding Party))
)
- and -)
)
)
GAETAN RANGER and NATHALIE) Jaye E. Hooper, for the Defendants
LACHANCE)
)
Defendants (Moving Parties))
)
)
) **HEARD:** February 25, 2011

REASONS FOR DECISION

Power J.

Introduction

[1] The defendants move pursuant to Rule 20 of the *Rules of Civil Procedure*, R.R.O. 1990, Reg. 194, as amended, for a summary judgment dismissing this action against them. It is their submission that no evidence has been forthcoming to and following examinations for discovery that support a finding of liability against them.

[2] This action is a claim to recover benefits paid by the plaintiff to a mail carrier who allegedly slipped and fell on the defendants' property.

Rule 20 of the Rules of Civil Procedure

[3] Rule 20.01(3) provides "that a defendant may, after delivering a statement of defence, move with supporting affidavit material or other evidence for summary judgment dismissing all or part of the claim in the statement of claim."

[4] Rule 20.04 provides as follows:

20.04 (1) Revoked: O. Reg. 438/08, s. 13 (1).

(2) The court shall grant summary judgment if,

(a) the court is satisfied that there is no genuine issue requiring a trial with respect to a claim or defence; or

(b) the parties agree to have all or part of the claim determined by a summary judgment and the court is satisfied that it is appropriate to grant summary judgment.

Powers

(2.1) In determining under clause (2) (a) whether there is a genuine issue requiring a trial, the court shall consider the evidence submitted by the parties and, if the determination is being made by a judge, the judge may exercise any of the following powers for the purpose, unless it is in the interest of justice for such powers to be exercised only at a trial:

1. Weighing the evidence.
2. Evaluating the credibility of a deponent.
3. Drawing any reasonable inference from the evidence.

Oral Evidence (Mini-Trial)

(2.2) A judge may, for the purposes of exercising any of the powers set out in subrule (2.1), order that oral evidence be presented by one or more parties, with or without time limits on its presentation.

Only Genuine Issue Is Amount

(3) Where the court is satisfied that the only genuine issue is the amount to which the moving party is entitled, the court may order a trial of that issue or grant judgment with a reference to determine the amount.

Only Genuine Issue Is Question Of Law

(4) Where the court is satisfied that the only genuine issue is a question of law, the court may determine the question and grant judgment accordingly, but where the motion is made to a master, it shall be adjourned to be heard by a judge.

Only Claim Is For An Accounting

(5) Where the plaintiff is the moving party and claims an accounting and the defendant fails to satisfy the court that there is a preliminary issue to be tried, the court may grant judgment on the claim with a reference to take the accounts.

[5] Prior to January 2010 the summary judgment rule allowed courts to grant a summary judgment if there was “no genuine issue for trial.” The amended rule, of course, requires a court to grant summary judgment if it is satisfied that there is “no genuine issue requiring a trial.” There are inconsistent decisions interpreting the change. Perell J., in *Healey v. Lakeridge Health Corp.* 2010 ONSC 725, [2010] O.J. No. 417 (S.C.J.), observed that the 2010 amendment was intended to remedy two problems: the fact that the former rule was too strict and the fact it was marred by jurisprudence limiting a motion judge’s ability to deal with evidentiary matters, including assessing credibility, and weighing evidence or finding facts. (See Kerry McGladdery-Dent, Judicial Research Clerk “*The Recent Summary Judgment Amendments: Responses and Commentary*” – a 2011 paper prepared for the Honourable Madam Justice Helen A. Rady).

[6] In *Healey, supra*, Perell J., at para. 23 of his decision said:

[23] Placed in the context of the other amendments to Rule 20, the purposes of the change from “no genuine issue for trial” to “no genuine issue requiring a trial” in the test for a summary judgment are: (1) to make summary judgment more readily available; and (2) to recognize that with the court’s expanded forensic powers, although there may be issues appropriate for trial, these issues may not require a trial because the court has the power to weigh evidence on a motion for summary judgment.

[7] In *Cuthbert v. TD Canada Trust*, 2010 ONSC 830, [2010] O.J. No. 630 (S.C.J.), Karakatsanis J. (now J.A.), noted that the linguistic change in Rule 20, in the context of the additional powers granted to motions judge, “permits a more meaningful review of the paper record and expressly overrules jurisprudence that prevented motions judge from making evidentiary determinations.” (See the aforesaid paper, *The Recent Summary Judgment Amendments: Responses and Commentary*”).

[8] Perell J. stated that the amended rule allowed motion judges the power to make findings of fact. Karakatsanis J., however, interpreted the rule more strictly and narrowly than did Perell J. and concluded that, while a motions judge may weigh evidence, evaluate credibility and draw reasonable inferences from the evidence, it was “not the role of the motions judge to make findings of fact for the purpose of deciding the action on the basis of the evidence” on a motion for summary judgment.

[9] In a subsequent decision, *New Solutions Extrusion Corp. v. Gauthier* 2010 ONSC 1037, [2010] O.J. No. 661 (S.C.J.), Karakatsanis J. observed that the changes to the rule did not change the test for summary judgment articulated in *Irving Ungerman Ltd. v. Galanis* (1991), 4 O.R. (3d) 545 (C.A.), which asked whether there is a genuine issue of material fact that requires a trial for its resolution.

[10] In *Dudgeon v. Canadian Career College* 2010 ONSC 3598, [2010] O.J. No. 2790 (S.C.J.), E.M. Macdonald J. agreed with Karakatsanis J. that the 2010 amendments do not authorize motions judges to make findings of fact to decide the action.

[11] Brown J., in *Lawless v. Anderson* 2010 ONSC 2723, [2010] O.J. No. 2017 (S.C.J.) agreed with Perell J.’s interpretation that the power in 2.(1) essentially amounts to an ability to make findings of fact. He, however, recognized Karakatsanis J.’s views of the theoretical purpose for the mini-trials authorized by 2.(2).

[12] Master MacLeod, in *Maynes v. Med-Eng Systems Inc.* 2010 ONSC 4704, [2010] O.J. No. 3819 (S.C.J.), seems to accept Perell J.'s interpretation; however, he articulated a somewhat different interpretation by breaking the analysis into three steps as follows:

14 The approach mandated by the rule is therefore a three step process. Firstly the court must consider the evidence and the authorities put forth by each party. If the evidence or the law demonstrates that a claim or a defence has no real prospect of success then there is no genuine issue and summary judgment should be granted. If there is a genuine issue of fact or law, the second step is to consider whether the genuine issue requires a trial. It is at this stage that the enhanced jurisdiction of the judge may be important because the judge has authority to decide contested questions of law and now of fact even if the latter involve questions of credibility. ...

[13] The Court of Appeal had the following to say in *Bruno Appliance and Furniture Inc. v. Cassels Brock & Blackwell LLP*, 2011 ONCA 67, [2011] O.J. No. 263 (C.A.):

28 Our court has not yet commented on the scope and meaning of the amended rule, or the extent to which it is open to a judge on a summary judgment motion to make findings of fact for the purpose of deciding the action based on the evidence presented on a motion for summary judgment. Thus, I do not think it can safely be said that there is so little merit to this ground of appeal that the appellant's right to appeal should be denied. [*i.e.*, a ground of appeal was that the motions judge exceeded the permissible scope of authority on a motion for summary judgment – that he wrongly used the powers under the rule as if he were a trial court judge].

[14] It appears that within the not too distant future a five-member panel of our Court of Appeal will attempt to resolve the dispute concerning the scope of the new rule. In the meantime, I prefer the approach of Perell J. particularly because rule 1.04 requires that the rules “be liberally construed to secure the just, most expeditious and least expensive determination of every civil proceeding on its merits.”

The Relevant Facts

[15] On February 14, 2007, Beverly Collins, a letter carrier, slipped on the defendants' walkway while delivering mail to their premises. Ms. Collins was injured and became entitled to

benefits under the *Government Employees Compensation Act*, R.S.C 1985, c. G-5. As a result, the Federal Crown became subrogated to her rights and advanced this claim in accordance with s. 9(3) of the Act. It is the position of the defendants that, at all material times, they maintained their property with a reasonable standard of care. Their position is that the slip and the subsequent injuries were caused by the negligence of Ms. Collins. They rely on the *Negligence Act*, R.S.O. 1990, c. N-1 and the *Occupiers' Liability Act*, R.S.O. 1990, c. O.2 as amended. These statutes provide as follows:

(a) *The Negligence Act*, R.S.O. 1990, c. N-1

....

Plaintiff guilty of contributory negligence

3. In any action for damages that is founded upon the fault or negligence of the defendant if fault or negligence is found on the part of the plaintiff that contributed to the damages, the court shall apportion the damages in proportion to the degree of fault or negligence found against the parties respectively.

Where parties to be deemed equally at fault

4. If it is not practicable to determine the respective degree of fault or negligence as between any parties to an action, such parties shall be deemed to be equally at fault or negligent.

....

(b) *Occupiers' Liability Act*, R.S.O. 1990, c. O.2

Definitions

1. In this Act,

“occupier” includes,

(a) a person who is in physical possession of premises, or

(b) a person who has responsibility for and control over the condition of premises or the activities there carried on, or control over persons allowed to enter the premises,

despite the fact that there is more than one occupier of the same premises; (“occupant”)

“premises” means lands and structures, or either of them, and includes,

- (a) water,
- (b) ships and vessels,
- (c) trailers and portable structures designed or used for residence, business or shelter,
- (d) trains, railway cars, vehicles and aircraft, except while in operation. (“lieux”)

Common law duty of care superseded

2. Subject to section 9, this Act applies in place of the rules of the common law that determine the care that the occupier of premises at common law is required to show for the purpose of determining the occupier’s liability in law in respect of dangers to persons entering on the premises or the property brought on the premises by those persons.

Occupier’s duty

3.(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

Idem

(2) The duty of care provided for in subsection (1) applies whether the danger is caused by the condition of the premises or by an activity carried on on the premises.

Idem

(3) The duty of care provided for in subsection (1) applies except in so far as the occupier of premises is free to and does restrict, modify or exclude the occupier’s duty.

Risks willingly assumed

4.(1) The duty of care provided for in subsection 3 (1) does not apply in respect of risks willingly assumed by the person who enters on the premises, but in that case the occupier owes a duty to the person to not create a danger with the deliberate intent of doing harm or damage to the person or his or her property and to not act with reckless disregard of the presence of the person or his or her property.

....

[16] In its Statement of Claim the plaintiff makes the following allegations of negligence against the defendants:

10. The Crown pleads that Ms. Collins' injuries are a direct result of the negligence of the Defendants in that:

- a) The Defendants failed to maintain their walkway in a reasonably fit and safe condition;
- b) The Defendants failed to clear the ice on their walkway;
- c) The Defendants allowed ice to form on their walkway;
- d) The Defendants failed to remove or caused to be removed the snow on their walkway so as to allow ice to be seen;
- e) The Defendants failed to put down sand and/or salt on their walkway to mitigate the effects of ice; and
- f) The Defendants failed to take any other reasonable steps to ensure that their walkway was safe for use at the time of Ms. Collins' fall.

[17] The defendants, in their Statement of Defence, deny the aforesaid allegations of negligence. They plead that "at all material times, they maintained the walkway to the Defendant's property at 6340 Fortune Avenue, Ottawa, Ontario ("the premises") with a reasonable standard of care given all the circumstances then and there existing."

[18] Paragraphs 5 and 6 of the defendants' Statement of Defence read as follows:

5. The Defendants state that if the area at issue was not cleared of snow and ice at the time of the fall by the Plaintiff, which is not admitted but denied, then

that state of snow and ice was present despite the reasonable efforts of the Defendants, who are residential homeowners.

6. The Defendants further deny any such state of snow and ice had been apparent for any sufficient or reasonable period of time in order to put the Defendants on notice.

[19] In paragraph 7 of their Statement of Defence the defendants allege that the injuries were caused by the negligence of the plaintiff and provide the following particulars:

- (a) she failed to use the cleared walkway area as set out for the purposes of the postal service workers;
- (b) she failed to keep a proper lookout in the circumstances;
- (c) she cut across an unclear and unsafe territory at her own risk in attempt to short cut her mail delivery route;
- (d) she was carrying items that obscured her vision or caused her to lose her balance;
- (e) she was carrying items that caused her to be unevenly balanced and increased her risk of losing her balance;
- (f) she failed to wear suitable footwear in the circumstances;
- (g) she failed to take into account the state of the areas she was walking on considering her previous knowledge of the area and her experiences that morning with the weather and walking conditions in the community;
- (h) she was hurrying at a pace that was inappropriate for the conditions then and there existing;
- (i) she suffered from pre-existing conditions which made her particularly susceptible to the type of fall or damages claimed to have been incurred by her; and/or
- (j) her faculties and coordination at all material times were impaired by a medical condition, fatigue and/or drugs.

[20] The factual background is set out in the moving parties' factum as follows: (Ms. Lachance and Ms. Collins were examined for discovery)

Factual Background

....

3. Beverly Collins became a letter carrier in September 2004. Prior to that, she had been employed with Canada Post in a variety of different capacities.

4. Ms. Collins has had the same route as a letter carrier since she began delivering mail. The route is in Orleans. The route has not changed over the years and has 522 houses ("points of call"). Ms. Collins walks this route every day. This has allowed Ms. Collins to become very familiar with the houses on her route including the house owned by the Homeowners.

5. Ms. Collins recalls that February 14, 2007 was the worst snowstorm in Ottawa that year. The weather was so treacherous that there was a discussion on the work floor of Canada Post of whether the mail should be delivered. Ms. Collins is the Health and Safety Representative for the letter carrier union and felt she was obligated, given the conditions, to confirm if delivery should be cancelled.

6. As the Health and Safety Representative, Ms. Collins is very knowledgeable about the policies and procedures concerning health and safety for Canada Post. She is aware that she has the absolute discretion to decline to deliver mail to a residence and skip a residence if there is any concern with safety. On the morning of February 14, 2007 Ms. Collins had already exercised that discretion and had skipped houses. She could not recall how many.

7. The Homeowners' residence is past the midway point of Ms. Collins' route. She recalled starting to deliver on her route at 9:00 a.m. She believes she fell on the Homeowners' property at approximately 11:30 a.m. She normally finishes delivering her mail at 12:30 or 1:00 p.m.

8. Ms. Collins evidence at discovery was that she had no prior incidents with the Homeowners' residence and considered it a "good residence" on her route. This included her observations of their snow and ice removal.

9. Ms. Collins further testified that she would have visually assessed the Homeowners' residence before determining if she should deliver mail on February 14, 2007. In her words, upon doing a visual inspection "I must have felt I wasn't at risk. I didn't think I was at risk or I wouldn't have gone".

10. Ms. Collins does not recall slipping although she knows it was on the walkway leading from the front door. She does recall that after she fell she could feel ice underneath her. She does not recall how much of an area of ice was present. She doesn't recall how much snow accumulation was present on the driveway.

11. Ms. Collins is aware through her position as Health & Safety representative that slips, trips and falls are the number one injury at Canada Post.

12. The examination for discovery occurred on February 9, 2010. While the Plaintiff/Responding Party has answered some undertakings, the following undertakings remain outstanding or were refused:

- Policy and procedure manuals concerning health and safety for letter carriers and the suspension of letter delivery (Q. 103)
- Any notes, logs or other documents pertaining to the weather on February 14, 2007 and the steps taken by Canada Post to protect their letter carriers (Q. 104, Q. 116)
- Statistics on the injuries of letter carriers (Q. 186)

13. A motion on undertakings and refusals has not yet been brought. Given that these documents are entirely relevant to the issues raised in the pleadings, an adverse inference should be drawn from the failure to produce. (I acknowledge that this paragraph is argument, not fact).

14. The Homeowner to be examined for discovery was Nathalie Lachance. Ms. Lachance was the person who cleared the driveway during the day at the residence in question (6340 Fortune Drive). On February 14, 2007, Ms. Lachance was a homemaker (she has subsequently obtained employment with the federal government).

15. Ms. Lachance has no specific knowledge of the morning of February 14, 2007 but was able to provide evidence as [*sic*, to] the normal routine of snow removal and maintenance.

16. Ms. Lachance indicated that she would clear all the snow from her walkway at approximately 7:00 a.m. and if the snow continued, she would go out again during the day (she estimated mid-day or mid-afternoon). The timing depended on the level of snowfall. Ms. Lachance would clear the driveway down to the paving stone.

17. For ice, Ms. Lachance testified that the Homeowners had salt in the garage that would be sprinkled on icy patches or along the entire walkway if warranted by the weather conditions.

18. No evidence has been provided that contradicts the system of snow and ice maintenance described by Ms. Lachance or that it was not followed on February 14, 2007. On the contrary, Ms. Collins' evidence that the property was well maintained and did not present an apparent risk on February 14, 2007 corroborates the presence and adequacy of this snow and ice maintenance system. (The last part of this paragraph, of course, is argument, not fact).

[21] The plaintiff's position is that "there is a live issue as to whether the Defendants had a winter maintenance system in place, and if so, whether this system was reasonable." The plaintiff sets out the facts upon which it relies in paras. 2 through 9 of its factum as follows:

....

2. On February 14, 2007, at approximately 11:45am, Ms. Beverly Collins, a mail carrier for Canada Post, fell while delivering mail to 6430 Fortune Avenue, Ottawa, Ontario.

3. At that time of her fall, Ms. Collins was wearing cleats and was exercising caution as it was snowing.

4. Ms. Collins injured her right wrist and shoulder in the fall.

5. As a result of her injuries, Ms. Collins has had four surgeries on her wrist. She is scheduled to undergo surgery on her shoulder.

6. The Defendants were the owners and occupiers of 6430 Fortune Avenue, Ottawa, Ontario, at the time of Ms. Collins' fall.

7. The Defendants have no specific recollection of February 14, 2007, except that it was Valentine's Day.

8. The Defendants were unable to provide any details of their snow and ice removal efforts, if any, on February 14, 2007. The Defendants did, however, provide information as to their normal winter maintenance routine.

9. According to Ms. Lachance, she would normally remove snow in the morning around 7am and again in the afternoon, if she deemed it necessary. Also, according to Ms. Lachance, her husband would normally remove snow in the evening, if it was necessary. In what concerns ice removal, Ms. Lachance's evidence was that the Defendants would sprinkle salt on icy patches or along the entire walkway when they saw there was ice that was forming.

[22] The defendants do not raise any issues concerning the credibility of Ms. Collins.

[23] Notwithstanding that the plaintiff's position is that the defendants' property maintenance system is a live issue, the plaintiff has not furnished the Court with any evidence to contradict the defendants' evidence.

[24] Only the defendant Nathalie Lachance was examined for discovery on account of the defendants. She was unable to recall the events of the day in question and, therefore, her testimony was limited to the removal of snow and ice in general.

[25] Ms. Collins acknowledges that she possesses a discretion to skip any house on her route that presents a health threat and that, on the day in question, she did, indeed, skip some houses. On discovery she indicated that she must have thought there was no risk because she did make a delivery at the defendants' premises. There are no eyewitnesses; there are no expert reports; there are no historical incidents of note; there are no relevant photographs; and there are no issues of melting and subsequently freezing conditions.

[26] The following answer was given by Ms. Collins to question 160 on her examination-for-discovery:

A. I remember that each point of call, each residence I would look at to determine whether or not I was going to go. Obviously, I had a look and I must have felt I wasn't at risk. I didn't think I was at risk or I wouldn't have gone. I walked up the walkway, up the steps, delivered the mail, came down. And then, the next thing I remember, I was face down and, you know, like my legs were -- I was flat. Face down flat, and I was trying to get up. So, you know, you use your knees or your legs to try to, you know, start moving, and I was sliding. At which point, I could feel something under me and under my -- I had pain in the right, I knew there was something wrong with my left hand. I pushed the snow and I could see ice. I got up, I told myself, "You're a letter carrier, come on, keep

going. We all slip, trip and fall”, which is true, it happens. I got up, I came back down the walkway. And I was probably halfway down the driveway when I realized because I was getting ready to, “Okay, get the mail, let’s go.” Because I only had a little bit of mail in my hand, maybe two pieces and a flyer, that I couldn’t lift my hand, and that you could see the bone sticking out of my hand. At which point I knew there was something seriously wrong and I had to leave the route.

[27] The following uncontested additional relevant facts are found in the February 21, 2011 affidavit of Erin Merrill filed on behalf of the plaintiff. Ms. Merrill is a paralegal with the Federal Department of Justice. Paragraph 15 of that affidavit reads as follows:

15. Based on historical weather information, between February 7, 2007 and February 14, 2007, the weather in Ottawa had been cold, ranging between a maximum temperature of -4.7C (-12C with the wind chill) on February 11, 2007 and a minimum temperature of -24.6C (-33C with the wind chill) on February 13, 2007. The maximum accumulation having occurred on February 14, 2007, itself, with snow falling most of the day. ...

[28] The following additional facts are found in the transcript of the examination-for-discovery of Ms. Collins:

- (a) It definitely snowed all the time through the mail route.
- (b) “I know my route, I know my customers. And there were houses that are in question we cut people off and suspend delivery all the time for walkways, et cetera, not being clear enough or continual snow removal problems.” Ms. Collins went on to say: “No. They [meaning the defendants] were, in all honesty, a good residence.”
- (c) Later she said: “Were they one of the houses that I would say, ‘this one I’ve already given notice to that their snow removal is inadequate and I’m going to suspend their delivery’? I don’t believe there was ever anything like that at the home, no.” She then added that she did not remember ever having skipped the defendants’ house.
- (d) After testifying that she did not remember the actual slip, the following series of questions and answers occurred:

Q. So, can you describe for me you're face down and you brush the snow, do you see how much of an area of ice there is?

A. I don't remember, I wasn't -- at that point, you know, you're not thinking like that, right?

Q. I agree.

A. I'm just thinking, "I want up." And I could feel -- yes, I don't remember.

(e) This was followed by an off record discussion and then Ms. Collins said:

A. But I didn't look, I didn't look to see how much or where it was, or how much of it. I just -- you got to get up, right?

(f) Later, she said:

A. But you were saying that you didn't look around to just see what size of patch of ice that you could tell?

(g) Ms. Collins could not remember whether the driveway had been cleared already that day.

Q. When you said that you felt something under your knees, you're assuming that was ice as well?

A. Yes, I didn't look.

[29] In Ms. Lachance's discovery she stated that the defendants did not become aware of the accident until July, 2007 – *i.e.*, 5 months later.

Relevant Authorities and Discussion

[30] The Crown's claim against the defendants is based on an allegation that the defendants breached the duties owed to Ms. Collins under the provisions of the *Occupiers' Liability Act*, *supra*. There is no dispute about the fact that the defendants are occupiers of the property on which Ms. Collins slipped. As stated earlier, an occupier's duty is set out in s. 3(1) of the Act as follows:

3.(1) An occupier of premises owes a duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises, and the property brought on the premises by those persons are reasonably safe while on the premises.

[31] The mere presence of snow and/or ice on a Canadian walkway in February does not, in itself, lead to a conclusion that a homeowner/occupier has not met his/her obligation under the statute to take such care in all the circumstances of the case that is reasonable to see that persons entering on the premises are reasonably safe while on the premises. Accordingly, the statute does not impose a strict liability regime.

[32] It is clear, however, that the statute creates a positive obligation upon occupiers to ensure that those who come on to their properties are reasonably safe. However, the onus of proof remains on the plaintiff to prove, on a balance of probabilities, that, the defendants failed to meet the standard of reasonable care. The fact of the injury does not create a presumption of negligence.

[33] I accept as correct the defendants' proposition that occupiers can successfully defend a claim under the Act by demonstrating that they had in place a regular regime of inspection, maintenance and monitoring sufficient to achieve a reasonable balance between what is practical in the circumstances and what is commensurate with reasonably perceived potential risks to those lawfully on the property and that an occupier's conduct in this regard is to be judged not by the result of his or her efforts (*i.e.*, whether someone is injured) but by the efforts themselves. Of course, it is important not to lose sight of the fact that, nevertheless, the burden of proof of a breach of the statute rests with the plaintiff.

[34] It is also important for a court to use common sense when applying the statute. Our winters in Canada are such that people fall all the time without someone being responsible in negligence. Falls on private property are not always a result of the conduct of the owner of the property on which the fall occurs. In *Stevenson v. City of Winnipeg Housing Co.*, [1988] M.J. No. 558, Krindle J., of the Manitoba Court of Queen's Bench, observed that no cases were referred to the court imposing a requirement that sidewalks be cleared of all snow because it

would be unreasonably expensive and impractical response to Winnipeg winters. I would add that no such authorities have been brought to my attention in this matter.

[35] An example of the application of common sense can be found in the Supreme Court of Canada's decision in *Swift v. MacDougall*, [1976] 1 S.C.R. 240. The Supreme Court of Canada approved of comments made in the Quebec Court of Appeal by Lajoie J., as follows:

... In my opinion it is setting too high a standard to ask a householder who has taken reasonable care of his stairway to check at all times and ensure that there is not the slightest trace of ice, during the Quebec City winter.

[36] In *Waldick v. Malcolm*, [1991] 2 S.C.R. 456, the Supreme Court of Canada said when applying the statutory duty on occupiers to take reasonable care in the circumstances to make the premises safe "that duty does not change but the factors which are relevant to an assessment of what constitute reasonable care will necessarily be very specific to each situation." Accordingly, the standard is one of reasonableness.

[37] As aforesaid, this matter comes before this Court pursuant to a motion for summary judgment under Rule 20.01(3) of the *Rules of Civil of Procedure*. Accordingly, pursuant to Rule 20.02(2) "a responding party may not rest solely on the allegations or denials in the party's pleadings, but must set out, in affidavit materials or other evidence, specific facts showing that there is a genuine issue requiring a trial." In the opening paragraph of the plaintiff's factum on this motion the following submission appears:

The defendants' motion must fail, the question as to whether the defendants breached the prescribed standard of care is a live issue for the court to determine. In particular, there is a live issue as to whether the defendants had a winter maintenance system in place, and if so, whether this system was reasonable. This issue must be resolved for liability to be established.

[38] As I read this submission, the argument is that I cannot decide this "live issue" on this motion. With respect, that proposition would render Rule 20 almost meaningless. Clearly, under Rule 20, I have jurisdiction to decide the issue. My mandate is set out in Rule 20.04(2) which

provides that “the Court shall grant summary judgment if the Court is satisfied that there is no genuine issue requiring a trial with respect to a claim or defence.” Under sub-rule 2.(1), in determining whether there is a genuine issue requiring a trial, I am obliged to consider the evidence submitted by the parties (*i.e.*, “the Court shall”) unless it is in the interest of justice that these powers be exercised only at a trial.

[39] Notwithstanding uncertainty in the recent jurisprudence with respect to the scope of my jurisdiction, it seems to me that it is still the law that on a Rule 20 motion the parties must put their best foot forward, or as has been said, must lead trump. As was stated by Henry J. in *Pizza Pizza Ltd., v. Gillespie* (1990), 75 O.R. (2d) 225 (Gen. Div.), “it is not sufficient for the responding party to say that more and better evidence will (or may) be available at trial. The occasion is now. The respondent must set out specific facts and coherent evidence organized to show that there is a genuine issue for trial.”

[40] In this case I conclude that the defendants have satisfied me that there is no genuine issue requiring trial. The plaintiff has failed to demonstrate the opposite.

[41] In my opinion, there are no conflicts of evidence before the Court at this time that demand that the results of this litigation be determined only after a trial. I adopt as persuasive paragraph 32 of Ms. Hooper’s (counsel for the defendants) factum which reads as follows:

32. Given Ms. Collins’ has no personal stake in this action, her evidence at discovery was not tainted by self-interest. When the injured party can not suggest any negligent act or omission and characterizes the property as well-maintained, what evidence is there that would require a trial? ...

[42] In my further opinion, there is no contradictory evidence before this Court at this time that warrants a conclusion by me that the defendants have not met their statutory duty to take such care as in all the circumstances of the case is reasonable to see that persons entering on the premises are reasonably safe while on the premises. I was not advised that there was any evidence available to the plaintiff to demonstrate that, if there was a reasonable system in place, it was not followed on the day in question. There is no evidence before me upon which I can or

should conclude that Ms. Lachance was not a credible witness on her examination for discovery. I would also add that there is no evidence before the Court to suggest that Ms. Collins was anything but a credible witness on her examination for discovery. She quite readily conceded that the property of the defendants was a well-maintained one.

[43] In my further opinion, no case of contributory negligent has been made out against Ms. Collins that would impact on the plaintiff's rights. However, the issue of contributory negligence does not arise since I find neither negligence nor breach of statutory duty on the part of the defendants.

[44] As aforesaid, there is nothing before me that warrants a conclusion that there is a genuine issue requiring a trial.

[45] Counsel for the plaintiff argues that there are credibility issues and, in particular, issues concerning the system or usual practice of snow and ice maintenance described by Ms. Lachance. I disagree. The evidence before the Court, in my opinion, warrants a conclusion that the defendants' property was well-maintained and did not present any unreasonable risk to Ms. Collins. The plaintiff, in my opinion, has not satisfied the onus on it on a balance of probabilities that the defendants failed to meet the appropriate standard of care. There is no evidence before me of any act or failure to act on the part of the defendants which resulted in the injury to Ms. Collins. I have taken a good hard look at the evidence before reaching the aforesaid conclusions. I have also been guided by the decision of the Supreme Court of Canada in *Canada (Attorney General) v. Lameman*, [2008] 1 S.C.R. 372, at para. 10, where the court stated:

... The summary judgment rule serves an important purpose in the civil litigation system. It prevents claims or defences that have no chance of success from proceeding to trial. Trying unmeritorious claims imposes a heavy price in terms of time and cost on the parties to the litigation and on the justice system. It is essential to the proper operation of the justice system and beneficial to the parties that claims that have no chance of success be weeded out at an early stage. Conversely, it is essential to justice that claims disclosing real issues that may be successful proceed to trial.

[46] Ms. Nabbali argues that the evidence of the defendants with respect to their system or routine is suspect because it contradicts what happened on the day of the accident. I fail to see what that contradictory evidence is. As observed earlier, the fact of a fall does not necessarily equate with a breach of the statutory duty of care.

[47] I observe, as well, that there is no suggestion that further evidence could be put before a trial judge. In other words, there is no suggestion that there are eyewitnesses to be heard – there were none. No expert reports were obtained by either party to the best of my knowledge. In any event, none were placed before the Court. There were no pictures taken of the scene at the relevant time. Therefore, to repeat, would a trial judge be in any better position to try this case than I am at this time? In my opinion, the answer is No.

Conclusion

[48] In the result, therefore, I am satisfied that there is no genuine issue in this action that requires a trial with respect to the claim or the defence to the claim.

[49] Accordingly, the plaintiff's motion for summary judgment is dismissed in its entirety.

Costs

[50] In the event that within three weeks following the release of these Reasons for Decision the parties have been unable to conclude an agreement with respect to legal costs, they may make brief written submissions to me.

Power J.

Released: May 25, 2011

CITATION: (Canada) Attorney General v. Ranger, 2011 ONSC 3196
COURT FILE NO.: 09-43969
DATE: 2011/05/25

ONTARIO
SUPERIOR COURT OF JUSTICE

B E T W E E N:

THE ATTORNEY GENERAL OF CANADA

Plaintiff (Responding Party)

- and -

GAETAN RANGER and NATHALIE
LACHANCE

Defendants (Moving Parties)

REASONS FOR DECISION

Power J.

Released: May 25, 2011